

Court No. - 2

Case :- WRIT - C No. - 39239 of 2009

Petitioner :- Smt. Lajja Devi

Respondent :- U.P. Power Corporation And Another

Petitioner Counsel :- Ghanshyam Joshi

Respondent Counsel :- H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Ram Autar Singh,J.

Put up on 12/8/2009, as fresh.

Order Date :- 10.8.2009

SB

Court No. - 2

Case :- WRIT - C No. - 39239 of 2009

Petitioner :- Smt. Lajja Devi

Respondent :- U.P. Power Corporation And Another

Petitioner Counsel :- Ghanshyam Joshi

Respondent Counsel :- H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Ram Autar Singh,J.

Shri H.P. Dubey, learned counsel appearing for the respondents prays and is allowed three weeks time for filing counter affidavit.

List thereafter.

It will be open for the petitioner to represent the matter before the competent authority against the consumption bill dated 03/6/2009 in accordance with 6.5 of the U.P. Electricity Supply Code, 2005.

Order Date :- 12.8.2009

SB

Court No. - 32

Case :- WRIT - C No. - 39239 of 2009

Petitioner :- Smt. Lajja Devi

Respondent :- U.P. Power Corporation And Another

Counsel for Petitioner :- Ghanshyam Joshi

Counsel for Respondent :- H.P. Dube, S.C., Shivam Yadav

Hon'ble Rakesh Tiwari, J.

Hon'ble Shashi Kant, J.

1. Case is taken up in revised list.
2. None appears for the petitioner. Learned Standing Counsel appearing for the State respondents is present.
3. Today this case has been listed under the heading "*Group of Cases Likely to be Infructuous (Without Objection)*".
4. From the classification report dated 16.12.2014, it appears that the petitioner sought quashing of electricity bill. No interim order has been passed in this case.
5. The above prayer was sought by the petitioner in the year 2009, at the time of filing the writ petition and since then quite long period has been passed. No interim order has been passed in the case. It appears that by efflux of time the cause of action no longer survives and the petitioner has lost interest in the matter and does not want to pursue the matter further. This writ petition has been rendered infructuous and same is liable to be dismissed accordingly.
6. In view of above, this writ petition stands dismissed as infructuous.
7. However, if the matter still survives, the petitioner will be at liberty to move an application to the said effect, within a period of thirty days from today.

Order Date :- 22.12.2015

A. Verma